

PHILIPPINE BUSINESS BANK

Mobile Banking Services — Terms of Use

These terms and conditions explain the rights and obligations pertaining to the Mobile Banking Service and the information that the Customer may use or request from the Bank, or that the Bank may provide to the Customer through the Mobile Banking Service.

1. Terms of Use

The Bank reserves the right to add, amend, revise, change or cancel any of these terms and conditions and also reserves the right to modify any features of any products or services offered by the Bank.

The Customer unconditionally accepts these terms and conditions applicable to such Account (defined below) and the services relating thereto, and shall always be bound by and abide with them and their amendments from time to time.

The Customer understands and acknowledges that this Mobile Banking Service is an extension of the Bank's Core Banking services, and that the Customer accessing such Mobile Banking Service shall also be bound by the terms and conditions that govern Branch Banking.

These terms and conditions are in addition to, and not in substitution or derogation of, the general business terms and conditions, and may be changed from time to time in relation to the Services.

2. Definitions

Account shall mean the bank account maintained by the Customer with the Bank for which the Mobile Banking Service is being offered.

Applicable Laws shall mean and include any statute, law, regulation or stipulation by the Bangko Sentral ng Pilipinas (BSP) or any other regulatory authority, whether in effect as of date or as amended from time to time.

Application shall mean the mobile application which will be downloaded on the mobile phone of the Customer to access and use the Mobile Banking Service.

Bank shall mean Philippine Business Bank, Inc.

Customer shall mean the existing holder of an Account with the Bank, or the holder of the Bank's debit/credit cards, who has made an application to the Bank to use the Mobile Banking Service and/or downloaded the Philippine Business Bank Mobile Banking App and thereby agreed to these terms and conditions.

Customer Identification Data shall mean the Customer account number/card number, mobile phone number, user ID, and other information that are to be used by the Customer to authenticate themselves prior to accessing the Mobile Banking Service.

Mobile Banking Service means any and all of the Services offered by the Bank to the Customer on a mobile phone and/or any electronic gadgets owned by the Customer.

Mobile Phone Number shall mean the number registered by the Customer in relation to the use of Services offered by the Bank.

Website shall mean the domain of the Bank located at www.pbb.com.ph, owned and controlled by Philippine Business Bank.

3. Acceptance of Terms and Conditions

On the terms and conditions hereinafter provided, the Bank offers the Mobile Banking Service to the Customer. These terms and conditions, made by the Bank and accepted by the Customer, shall form the contract between the Customer and the Bank. They shall be in addition to, and not in derogation of, other terms and conditions relating to any Account or Service of the Customer and/or the respective products provided by the Bank, unless otherwise specifically stated.

- To access the Mobile Banking Service, the Customer is required to download the Application on their mobile phone and/or any electronic gadgets they own, provided such device is compatible with the Application.
- To start using the Application, the Customer must register by following the step-by-step process of creating their own access credentials. If the Customer would like to register for Philippine Business Bank Online Banking (Internet Banking), this can be done from the settings of the mobile App. The Customer must strictly adhere to privacy procedures to ensure the safekeeping of their login credentials.

4. Usage of Facility

By accepting the terms and conditions on the mobile phone while registering for the Mobile Banking Service, the Customer:

- agrees to use the Mobile Banking Service for financial and non-financial transactions offered by the Bank from time to time;
- irrevocably authorizes the Bank to debit the Account(s) enabled for Mobile Banking Service for all transactions/services undertaken by using Customer Identification Data;
- authorizes the Bank to map the account number, User ID and Mobile Phone Number for the smooth operation of the Mobile Banking Service, and to preserve the mapping record on its own server for providing banking products it may offer;
- agrees to the usage of the Customer Identification Data as an authentication factor for the Mobile Banking Service;
- confirms acceptance of the terms and conditions of the Mobile Banking Service offered by the Bank;
- agrees that the Mobile Banking Service will enable them to transact using Customer Identification Data within the limit prescribed by the Bank, and that such transactions will be deemed genuine;
- agrees that transactions originated using mobile phones are non-retractable, as these are instantaneous/real-time;

- understands and explicitly agrees that the Bank has the absolute and unfettered right to revise the prescribed ceilings from time to time, which will be binding, and that the guidelines issued by the Bangko Sentral ng Pilipinas (BSP) on “Know Your Customer (KYC)”, “Anti-Money Laundering (AML)” and “Combating the Financing of Terrorism (CFT)” from time to time would be applicable to the Mobile Banking Service;
- acknowledges that the Bank shall file a “Suspicious Transaction Report (STR)” to the respective government body for mobile banking transactions, as in the case of normal banking transactions.

5. Accuracy of Information

It is the responsibility of the Customer to provide correct information to the Bank through the use of the Mobile Banking Service or any other method. The Bank will endeavor to correct any error wherever possible on a best-effort basis, if the Customer reports such error promptly.

The Customer accepts that, in case of any discrepancy in this information, the Bank shall not be responsible for any errors which may occur despite the steps taken by the Bank to ensure accuracy, and shall not have any claim against the Bank in the event of any loss or damage suffered as a consequence of information found to be incorrect.

6. Responsibilities and Obligations of the Customer

- The Customer shall act in good faith and exercise reasonable care and diligence in keeping the Customer Identification Data and all other personal and confidential information in secrecy. At no time and under no circumstances shall the Customer disclose the Customer Identification Data and related details to any other person, or permit the information to come into the possession or control of any other person.
- The Customer confirms that all persons whose personal or other data is transmitted, processed or otherwise handled have consented to such handling under these terms and conditions in accordance with extant laws, or that the Customer shall obtain their consent prior to any such handling.
- The Customer will be responsible for all transactions, including fraudulent or erroneous transactions, made through their mobile phone, SIM card and Customer Identification Data, regardless of whether such transactions are in fact entered into or authorized by them. The Customer will be responsible for the loss or damage, if any, suffered.
- It will be the responsibility of the Customer to notify the Bank immediately if they suspect misuse of the Customer Identification Data. The Customer will also immediately initiate the necessary steps to change their Customer Identification Data.
- The Customer shall be liable and responsible for all legal compliance and adherence to all commercial terms and conditions in respect of the mobile connection, SIM card and mobile phone through which the Mobile Banking Service is availed. The Bank does not accept or acknowledge any responsibility in this regard.
- The Customer shall keep themselves updated with regard to any information or modification relating to the services offered under the Mobile Banking Service, which would be published on the Bank’s Website and sent to the Customer for acceptance in case of a change.

7. Non-Transferability

The grant of the Mobile Banking Service to a Customer is not transferable under any circumstance and shall be used only by the Customer.

8. Confidentiality and Disclosure

To the extent permitted by Applicable Laws, the Bank shall be entitled to transfer any information relating to the Customer, and/or any other information given by the Customer for utilization of the Mobile Banking Service, to and between its branches, subsidiaries, representative offices, affiliates, auditors and agents, intermediaries and third parties selected by the Bank, wherever situated, for confidential use on a need-to-know basis and in connection with the Mobile Banking Service.

9. No Warranty

Without prejudice to anything contained in these terms and conditions, the Bank, the third-party service provider, and their respective third-party suppliers, licensors and partners make no express or implied warranty and make no representations regarding the use or the results of the use of the Mobile Banking Service provided hereunder, including, without limitation, any warranties of non-infringement of third-party rights, title, marketability, correctness, accuracy, adequacy, reliability, suitability, satisfactory quality and fitness for a particular purpose or otherwise.

The Customer expressly agrees that use of the Mobile Banking Service is at their own risk. The Mobile Banking Service, and any data, information, third-party software, reference sites, services or software made available in conjunction with or through it, are provided on an “as is” basis.

10. Limitation of Liability

Without prejudice to any other provisions of these terms and conditions, the Bank shall not be liable to the Customer for any loss or damage whatsoever or howsoever caused, arising directly or indirectly in connection with the Mobile Banking Service and/or these terms and conditions.

Notwithstanding the generality of the above, the Bank expressly excludes liability for consequential loss or damage, or loss of profit, business, revenue, goodwill or anticipated savings, which may arise in respect of the Mobile Banking Service.

11. Indemnity

In consideration of the Bank providing the Mobile Banking Service, the Customer agrees to indemnify and keep the Bank safe and harmless from and against all actions, claims, demands, proceedings, loss, damages, costs, charges and expenses whatsoever which the Bank may at any time incur, sustain, suffer or be put to as a consequence of, or arising out of, acting in good faith or omitting or refusing to act on any instructions given by use of the Mobile Banking Service. The Customer shall indemnify the Bank for unauthorized access by any third party to any information, instructions or triggers given by the Customer, or for any breach of confidentiality.

12. Disclaimer

The Bank or its employees / contractual staff will not be liable for:

- any unauthorized use of the Customer's Identification Data;

- any use of the mobile phone number / instrument, or unauthorized access to emails received at the notified email address, for any fraudulent, duplicate or erroneous instructions given by use of the same;
- acting in good faith on any instructions received by the Bank;
- any error, default, delay or inability of the Bank to act on all or any of the instructions;
- loss of any information / instructions / alerts in transmission;
- unauthorized access by any other person to any information or instructions given by the Customer.

The Bank reserves the right to limit the amount and frequency of payments that a Customer may make using the Mobile Banking Service, with prior intimation to the Customer.

The Bank shall not be liable for any loss or damage that the Customer may incur due to the negligence, act or omission of any third party.

The Customer shall be solely responsible for the selection of the device and Telephone Service Provider(s), and for all issues or disputes between the Customer and the Telephone Service Provider(s) and/or the manufacturer of the device.

13. Addition, Withdrawal or Termination of Mobile Banking Service

- The Mobile Banking Service is made available to the Customer at the sole discretion of the Bank and may be discontinued by the Bank at any time, with or without notice.
- The Bank reserves the right to introduce additional services with or without giving any notice to the Customer. The Bank reserves the right to send SMS to the registered mobile phones regarding its products, services or any related matter, without the express consent of the Customer.

14. Governing Law and Jurisdiction

Any dispute or difference arising out of or in connection with the Mobile Banking Service shall be subject to the exclusive jurisdiction of the courts of the Philippines and shall be governed by the laws of the Republic of the Philippines.